Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1150
Claimant:	Bryan Benton
Adjuster:	Valerie Rodriguez

2024-09-28 - Claim received by phone from the insured driver regarding a rear-end collision at a signalized intersection. Insured reports stopping at a red light when the vehicle behind made contact at low speed. Police report requested. Vehicle towed from scene to a preferred repair facility for inspection.

2024-09-29 - Recorded statement taken from the insured. Insured reports no prior accidents this policy term and states the other driver appeared to be looking at a phone at impact. Photos of both vehicles received and attached to file. Liability appears clear on the facts reported, pending police report review.

2024-10-08 - Notice of representation received from claimant's attorney's office. All future communication to be directed through counsel. Letter of representation acknowledged. Request for medical records, prior treatment history, and wage documentation sent to counsel. Claimant reports a concussion with ongoing headaches and dizziness per the demand package preview.

2024-10-10 - Medical records received from treating physician and imaging facility. Diagnosis consistent with mild traumatic brain injury. Claimant has been referred to a neurology follow-up. Records show a prior history of migraines, which counsel was asked to clarify. Reserve reviewed and adjusted to reflect the reported injury. Referred to the bodily injury unit for evaluation.

2024-10-11 - Supervisor review completed. Liability position remains favorable to the insured, but damages cannot be evaluated until treatment is complete. Counsel advised that a settlement demand will be considered once the neurology report is received. Diary set for follow-up in thirty days to check on treatment status and request updated records.

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Bodily Injury Unit

Recorded Statement

Claim number:	C-1150
Statement of:	Bryan Benton
Taken by:	Valerie Rodriguez
Date:	2024-09-30

Q: Thank you for taking the time to give this recorded statement. Please state your full name for the record.

A: I'd rather not give my full name on a recording, but you can use my claim reference.

Q: That's fine. Can you describe where you were when the collision happened?

A: I was stopped at a red light on the main road in League City, near the shopping center entrance. Traffic had been backing up for a few minutes.

Q: What happened next?

A: The car behind me didn't stop. I felt a hard jolt from behind and my head snapped forward and then back against the headrest. My car rolled a little into the intersection before the brakes caught.

Q: Were you wearing your seatbelt?

A: Yes, and the airbags did not deploy. I got out and walked around for a minute, but I didn't feel right.

Q: Did you seek medical attention?

A: Yes, I went to urgent care that afternoon. They told me I have a concussion. I've had headaches, and bright lights bother me. I also get dizzy when I stand up too quickly.

Q: Have you missed any work because of this?

A: Yes, I've been off since the accident. My doctor said I need to limit screen time and rest for now.

Q: Is there anything else you'd like to add?

A: Just that the other driver admitted at the scene that they were looking at their phone. I'd like this documented.

Q: Thank you. We'll follow up with you in writing.

A: Thank you.